

March 9, 2026

The Governor of Alabama
Alabama State Capitol
600 Dexter Avenue
Montgomery, AL 36130

Dear Governor,

As a member of the jury in Mark Jenkins' capital case, I ask that you commute Mark's sentence from death to life in prison without the possibility of parole. I have lived in Alabama all my life. I am a lifelong Republican. I consider myself tough on crime. I took my role as a juror in Mark's capital case very seriously. And I believe that life without the possibility of parole is the appropriate sentence in this case.

At the sentencing portion of Mark's trial, we knew next to nothing about him. All we knew was that Mark was from California and worked at a gas station. And we noticed that no one—no friends, no family, not even his mother—showed up to support him at his trial. We thought it was odd, but only now, after learning more about Mark's story, do I understand why.

I now know that Mark's childhood was horrific. His mother drank throughout her pregnancy, tried to abandon him at birth, and spurned him throughout his childhood and adolescence. Mark's father locked him in a room, beat him nearly daily, and forced him to eat his own feces. And when Mark, at just four years old, was raped by his own grandfather, nobody did anything to help him.

I now know that Mark is intellectually disabled. His lawyers did not bring up his disability during his trial. Throughout his life, family, teachers, and friends noticed his deficits and his struggles to function on his own. But nobody intervened and gave him the support he needed.

And I now know that Mark was immediately, and deeply, remorseful for having killed Tammy Hogeland. Mark's lawyers did not tell us about his remorse or put on any evidence to demonstrate that remorse. But Mark has been remorseful since his crime, and he has accepted Jesus into his life and repented for his actions.

Even without any of that information, the jury was not unanimous. I and one other juror voted to spare Mark from execution. To be a juror on a capital trial, you must be willing to impose the death penalty, and I went into that trial ready to sentence a man to death if appropriate. Ultimately, I did not believe that death was the right sentence for Mark. Still, Mark was sentenced to death. We are told that, as jurors, we are the voices of the community, but when Mark was sentenced, only some of our voices were heard.

Moreover, the jurors who voted for death did so without knowing about Mark's childhood, his disability, his remorse—anything about his story or character beyond his crime. We

did not have all the information we should have had when sentencing Mark. The judicial process did not work the way it is supposed to work.

At the trial, there was a lot of testimony about one highway exit, and now, whenever I drive past that highway exit, I think about Mark. It has been thirty-five years since the trial, but his case weighs heavily on me still. I pray for Tammy's family; I also pray for Mark. I am not proud that he got the death penalty.

Governor, you alone have the power to commute Mark's sentence. I join many others in asking you to use that power to change Mark's sentence from death to life in prison without the possibility of parole.

Sincerely,

A handwritten signature in blue ink, appearing to read "Rich Spiker", with a stylized flourish at the end.

Richard Spiker
Moody, Alabama